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Case Number: 24STCV32121 Hearing Date: July 2, 2026 Dept: 408

Defendant Fortuna Enterprises, L.P.'s

Motion for Summary Judgment is GRANTED.

I.

BACKGROUND

On December 5, 2024, Plaintiff Criss

Draper ("Plaintiff") filed a complaint against Defendants Hilton Hotels

Corporation, Fortuna Enterprise, Sue Trobaugh, and Jeff Ragonese ("Defendants")

alleging causes of action for:

1. Disability

Discrimination (Cal. Gov. Code, § 12940(a));

2. Retaliation for

Requesting Reasonable Accommodation (Cal. Gov. Code, § 12940(m)(2)) and Cal.

Lab. Code, §§ 1102.5-1102.6);

3. Failure to Take All

Reasonable Steps to Prevent Discrimination (Cal. Gov. Code, § 12940(k));

4. Failure to

Accommodate (Cal. Gov. Code, § 12940(m)(1));

5. Failure to Engage in

Good Faith Interactive Process (Cal. Gov. Code, § 12940(n));

6. Harassment Based on

Disability (Cal. Gov. Code, § 12940, et seq.); and

7. Defamation.

On April 4, 2025, the court sustained in part Defendants' Demurrer to Plaintiff's complaint as to the first through third and sixth through seventh causes of action with leave to amend, and overruled in part as to the fourth and fifth causes of action.

On March 13, 2026, Defendant Fortuna Enterprises, L.P., erroneously sued as Hilton Hotels Corporation dba Hilton Los Angeles Airport and Fortuna Enterprises, ("Fortuna") filed an answer to Plaintiff's complaint.

On April 10, 2026, Fortuna filed this Motion for Summary Judgment, or in the alternative, Summary Adjudication. On June 12, 2026, Plaintiff filed an opposition. On June 18, 2026, Fortuna filed a reply.

II.

LEGAL STANDARD

"A party may move for summary judgment in an action or proceeding if it is contended that the action has no merit or that there is no defense to the action or proceeding. The motion may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct." (Code Civ. Proc., § 437c, subd. (1)(a).)

"[T]he party moving for summary judgment bears the burden of persuasion that there is no triable issue of fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atl. Richfield Co. (2001) 25 Cal.4th 826, 850 [citation omitted].)

“[T]he party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact.” (Aguilar, supra, at 850; Smith v. Wells Fargo Bank, N.A. (2005) 135 Cal.App.4th 1463, 1474, [applying the summary judgment standards in Aguilar to motions for summary adjudication].)

“On a summary judgment motion, the court must therefore consider what inferences favoring the opposing party a factfinder could reasonably draw from the evidence. While viewing the evidence in this manner, the court must bear in mind that its primary function is to identify issues rather than to determine issues. Only when the inferences are indisputable may the court decide the issues as a matter of law. If the evidence is in conflict, the factual issues must be resolved by trial.” (Binder v. Aetna Life Ins. Co. (1999) 75 Cal.App.4th 832, 839 [citation omitted].)

“The trial court may not weigh the evidence in the manner of a factfinder to determine whose version is more likely true. Nor may the trial court grant summary judgment based on the court’s evaluation of credibility. (Binder, supra, at 840 [citations omitted]; see also Weiss v. People ex rel. Depot of Transp. (2020) 9 Cal.5th 840, 864 [“Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party”].)

III.

DISCUSSION

Fortuna seeks summary judgment on the fourth through fifth causes of action alleged in Plaintiff’s complaint and Plaintiff’s request for punitive damage. In the alternative, Fortuna moves for summary adjudication on the following issues:

[Issue No. 1] Plaintiff’s fourth

cause of action for failure to accommodate fails as a matter of law because Fortuna did in fact provide Plaintiff with reasonable accommodation in the form of finite leaves of absence and reassignment to a vacant position;

[Issue

No. 2] Plaintiff's

fourth cause of action for failure to accommodate fails as a matter of law because no reasonable accommodation exists which would allow Plaintiff to perform the essential functions of the Director of Safety & Security position he desires;

[Issue

No. 3] Plaintiff's

fifth cause of action for Failure to Engage in the Interactive Process fails as a matter of law because Fortuna has continuously engaged in a good faith interactive process with Plaintiff;

[Issue

No. 4] Plaintiff's

fifth cause of action for failure to engage in the interactive process fails as a matter of law because Fortuna accommodated Plaintiff;

[Issue

No. 5] Plaintiff's

fifth cause of action for failure to engage in the interactive process fails as a matter of law because Plaintiff cannot identify an accommodation that would have enabled him to perform the essential functions of the position he desired; and

[Issue

No. 6] Plaintiff's

claim for punitive damages is barred because, as a matter of law, Plaintiff has no evidence and cannot prove that any officer, director, or managing agent of Fortuna is guilty of oppression, fraud, or malice.

A.

Evidentiary Objections

B.

Issues Nos. 1 and 2 – Failure to

Accommodate

The Fair Employment and

Housing Act ("FEHA"), pursuant to Government Code section 12940(m), forbids an employer "to fail to make reasonable accommodation for the known physical or mental disability of an applicant or employee" unless the employer demonstrates that it would impose an undue hardship. (Gov. Code, § 12940, subd. (m)(1).) A claim for failure to provide reasonable accommodations requires (1) that a plaintiff suffers from a disability; (2) that plaintiff be qualified for the position, i.e., that he or she can perform the essential functions of the position with reasonable accommodations; and (3) that the employer failed to provide such reasonable accommodations. (*Hernandez v. Rancho Santiago Community College District* (2018) 22 Cal. App. 5th 1187, 1194.)

"Under [FEHA], 'reasonable accommodation' means 'a modification or adjustment to the workplace that enables the employee to perform the essential functions of the job held or desired.'" (Cuiellette v. City of Los Angeles (2011) 194 Cal.App.4th 757, 766, quoting *Nadaf–Rahrov v. Neiman Marcus Group, Inc.* (2008) 166 Cal.App.4th 952, 974.) In addition, "[a] finite leave of absence may be a reasonable accommodation to allow an employee time to recover, but FEHA does not require the employer to provide an indefinite leave of absence[.]" (*Nealy v. City of Santa Monica* (2015) 234 Cal.App.4th 359, 377-378.) Additionally, "[c]ourts have made it clear that 'an employer has a duty to reassign a disabled employee if an already funded, vacant position at the same level exists.'" (*Spitzer v. The Good Guys, Inc.* (2000) 80 Cal.App.4th 1376, 1389.)

"Although the question of reasonable accommodation is ordinarily a question of fact, when the undisputed evidence leads to only one conclusion as to the reasonableness of the accommodation sought, summary judgment is proper." (*Raine v. City of Burbank* (2006) 135 Cal.App.4th 1215, 1227, fn. 11 [citations omitted].)

It is undisputed that Plaintiff

is an employee of Fortuna since 2000; Plaintiff assumed the role of Director of Safety & Security for the Hilton Los Angeles Airport hotel ("Hotel") on January 16, 2022; and Plaintiff suffers from sarcoidosis, which is the scarring of the lungs that significantly affects a person's ability to breathe. (Undisputed Material Fact ("UMF"), Nos. 38, 40-41.)

Fortuna argues that Plaintiff's failure to accommodate claim fails as Plaintiff cannot identify an accommodation that would enable him to perform the essential functions of a safety-sensitive position based on his restrictions and Fortuna accommodated Plaintiff in the only reasonable manner available through a leave of absence and temporary reassignment. (MSJ, at pp. 11-12, 16-17.)

In support, Fortuna provides that complications related to Plaintiff's condition required him to take leave in July 2023 and resulted in several additional absences in August and September 2023. (UMF, No. 42.) In January 2024, Plaintiff's doctor imposed restrictions preventing Plaintiff from standing or walking for more than 25 percent of his 8-hour shift; prohibited pushing, pulling, carrying or lifting more than 10 pounds; and required that Plaintiff have access to his portable oxygen tank at all times. (Id., No. 43.) On February 9, 2024, Fortuna's Director of Human Resources, Defendant Sue Trobaugh ("Trobaugh"), met with Plaintiff to discuss his restrictions and offered to accommodate Plaintiff with a leave of absence. (Id., No. 44.) Plaintiff commenced a leave of absence on March 10, 2024. (Id., No. 49.)

In May 2024, Plaintiff sent Fortuna an updated doctor's note which limited Plaintiff's ability to stand or walk for more than 45 minutes in an hour; restricted Plaintiff from lifting, carrying, pushing or pulling more than 30 pounds.; and continued to require that Plaintiff have access to his supplemental oxygen tank with any type of exertion. (Id., No. 50.) Such restrictions were to be in place through August 30, 2024. (Id., No. 51.) Fortuna subsequently determined that Plaintiff remained unable to perform the essential functions of the Director role and that no accommodation would enable Plaintiff to do so. (Id., No. 53.) As an alternative reasonable accommodation, Fortuna offered Plaintiff a newly vacant administrative position of Front Office Manager and offered to compensate Plaintiff at his higher rate of pay for up to three months during the temporary reassignment. (Id., Nos. 54-55.) On May 27, 2024, Plaintiff declined the reassignment and remained on a leave of absence. (Id., Nos. 56-57.) During discovery, Fortuna learned that, on May 22, 2024, Plaintiff's doctor had placed him entirely off work through August 30, 2024. (Id., No. 58.)

In

August 2024, Plaintiff provided Fortuna a new doctor's note placing him "off work" from August 16, 2024, through September 30, 2024, and Fortuna granted Plaintiff leave as a reasonable accommodation. (Id., Nos. 60-61.) In September 2024, Plaintiff's doctor imposed restrictions to be in place from September 23, 2024, through December 23, 2024, which precluded Plaintiff from standing or walking more than 10 minutes per hour in addition to Plaintiff having access to his portable oxygen tank at all times. (Id., No. 62.) On September 25, 2024, Trobaugh informed Plaintiff that his restrictions were not compatible with the essential functions of his position as Director and Plaintiff remained in a leave of absence through December 23, 2024. (Id., Nos. 64-65.) In December 2024, Plaintiff provided Fortuna with an update doctor's note which continued his restrictions through March 11, 2025. (Id., No. 66.) Nevertheless, Plaintiff requested to return to work in December 2024. (Id., No. 67.) In January 2025, Trobaugh again informed Plaintiff that Fortuna determined that his work restrictions were incompatible with the Director position. (Id., No. 68.) Fortuna again offered Plaintiff temporary reassignment to the still vacant position of Front Office Manager and to compensate Plaintiff at his higher rate of pay for three months. (Id., Nos. 69-70.) Plaintiff accepted the temporary reassignment to Front Office Manager and commenced work in the position on January 21, 2025. (Id., No. 71.) Fortuna continued to compensate Plaintiff at his higher salary through July 13, 2025, past the three months originally offered. (Id., No. 77.) Plaintiff remains in his reassignment through the present date due to his continued medical restrictions. (Id., Nos. 72-76.)

The court finds that Fortuna met its initial burden to demonstrate that reasonable accommodations were provided to Plaintiff based on his restrictions. Fortuna further demonstrates that Plaintiff's medical restrictions preempted him from performing the essential functions of his position as Director of Safety & Security, which included being able to walk and climb stairs regularly for up to 6 hours per shift; lift up to 50 pounds; directing responses to emergency situations; directing and administering the patrol of the full interior of the property and the entire perimeter of the property; and providing CPR and rendering first aid to guest, among other essential duties. (UMF, Nos. 4-24.) Based on Plaintiff's restrictions, the court finds that the undisputed evidence leads to only one conclusion that the accommodations Fortuna offered to Plaintiff, finite leave of absences and reassignment, were reasonable. The burden shifts to Plaintiff to demonstrate that such accommodations were unreasonable.

In

opposition, Plaintiff fails to carry his burden. Plaintiff contends that the accommodations were unreasonable as Fortuna could have provided Plaintiff with a wheelchair or scooter to accommodate his mobility restrictions. (Opp., at pp. 13-14.) Plaintiff also appears to argue that the Director role was primarily a “desk job” which Plaintiff was able to perform despite the mobility limitations. (Opp., at pp. 12-13.)

The

court finds that Plaintiff failed to provide a persuasive argument or disputing evidence that the essential functions of the Director position included more than merely administrative tasks where the use of a mobility device would have allowed Plaintiff to fulfill those functions. Moreover, FEHA does not obligate an employer to accommodate an employee by excusing him or her from the performance of essential functions. (Nealy, supra, 234 Cal.App.4th at 375.) In other words, Fortuna was not required to excuse Plaintiff from performing an essential duty necessitating physical activity to demonstrate that reasonable accommodations were provided for Plaintiff to remain in the Director position.

Accordingly, summary adjudication is granted as to the first and second issues pertaining to the fourth cause of action.

C.

Issues Nos. 3 through 5 – Failure to Engage in Interactive Process

Government Code section 12940(n) provides that it is unlawful “[f]or an employer or other entity covered by this part to fail to engage in a timely, good faith, interactive process with the employee or applicant to determine effective reasonable accommodations, if any, in response to a request for reasonable accommodation by an employee or applicant with a known physical or mental disability or known medical condition.” (Gov. Code, § 12940, subd. (n).)¿

“The interactive

process required by [Section 1240(n)] is an informal process with the employee or the employee's representative, to attempt to identify a reasonable accommodation that will enable the employee to perform the job effectively.

Ritualized discussions are not necessarily required.” (Wilson v. County of Orange, 169 Cal.App.4th 1185, 1195

[citation omitted].) If an employee does not need or request an accommodation, there can be no violation of the duty to engage in the interactive process or to accommodate. (Prilliman v. United Air Lines, Inc. (1997) 53 Cal.App.4th 935, 954.)

To prevail on a claim for failure to engage in the interactive process under Section 12940(n), an employee must, after the parties have engaged in the litigation process with full discovery, identify a reasonable accommodation that would have been available at the time the interactive process should have occurred. (Scotch v. Art Institute of California (2009) 173 Cal.App.4th 986, 1018-1019.)

Fortuna argues that the evidence demonstrates that it has continuously engaged in an ongoing interactive process based on Plaintiff's medical restrictions. (MSJ, at pp. 17-18.)

The court finds that Fortuna met its burden of demonstrating that it engaged in a timely, good faith, interactive process with Plaintiff to determine the reasonable accommodations available. In fact, the evidence demonstrate that reasonable accommodations were provided to Plaintiff, including multiple finite leave of absence and reassignment. The burden shifts to Plaintiff.

In opposition, Plaintiff fails to raise a triable issue of fact demonstrating that Fortuna failed to engage in the interactive process or that an alternative reasonable accommodation could have been implemented if Fortuna did not actually engage in the interactive process. Although Plaintiff attempts to argue that placing him on medical leave demonstrates that Fortuna did not attempt to find a reasonable accommodation, the court still finds that the granting of a leave of absence was reasonable for the reasons stated above. (Opp., at p. 9-10.) Moreover, Plaintiff fails to demonstrate that Fortuna failed to engage in the interactive process because Fortuna could have provided Plaintiff a mobility device to carry out his essential functions as Director. The court again notes that there is no indication that providing Plaintiff a wheelchair or scooter would have allowed him to effectively perform as a Director based on the physical requirements of the position. Accordingly, Plaintiff fails to identify any reasonable accommodations that would have been available when the interactive process should have occurred beyond the accommodations actually provided by Fortuna.

Accordingly, summary adjudication is granted as to the third through fifth issues pertaining to the fifth cause of action.

D. Issue No. 6 – Punitive Damages

As summary adjudication was granted in favor of Fortuna on the only two remaining causes of action in Plaintiff's complaint and Plaintiff has failed to provide evidence that a triable issue exists, the court finds that the issue of punitive damages must also be adjudicated.

Accordingly, summary adjudication is granted as to the request for punitive damages.

IV.

CONCLUSION

Defendant Fortuna

Enterprises, L.P.'s Motion for Summary Judgment is GRANTED.